

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Complex Law and Motion/CMC Calendar

HONORABLE MICHAEL L. MAU

1050 Mission Road, South San Francisco

Department 20, Courtroom L

August 21, 2026 at 2:00 PM

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept20@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5120 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 161 576 6143 Password: 142907

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

Case	Title / Nature of Case
2:00 PM	
Line 2	
JCCP 5455	KUMAR MANAGEMENT WAGE AND HOUR CASES

PETER J. MENDOZA JAIMES
KUMAR MANAGEMENT CORPORATION II, INC

JASON W ROTHMAN
JONATHAN BRENNER

Hearing on Petition for Coordination

TENTATIVE RULING: CONTINUED FROM 7/31/2026 FOR ARGUMENT

Peter J. Mendoza Jaimes's ("Petitioner") Petition for Coordination is DENIED. The Court notes that the tentative ruling from 7/31/2026 was also to deny the petition.

Petitioner seeks coordination of the following wage and hour cases:

Mendoza Jaimes v. Kumar Mgmt. Corp., et al., Case No. 25CV457432, filed in Santa Clara County Superior Court ("*Jaimes* PAGA action");

Briant Hernandez v. Kumar Mgmt. Corp., et al., Case No. 25CV458880, filed in Santa Clara County Superior Court ("*Hernandez* action");

Swafford v. Kumar Mgmt. Corp. II, Inc., et al., Case No. 24CV022997, filed in Sacramento County Superior Court ("*Swafford* action");

Kameyer v. Kumar Mgmt. Corp. II, Inc., et al., Case No. 24-CIV-06578, filed in San Mateo County Superior Court ("*Kameyer* action"); and

Rios v. Kumar Mgmt. Corp. II, Inc., et al., Case No. 24-CIV-07250, filed in San Mateo County Superior Court ("*Rios* action").

"Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account [1] whether the common question of fact or law is predominating and significant to the litigation; [2] the convenience of parties, witnesses, and counsel; [3] the relative development of the actions and the work product of counsel; [4] the efficient utilization of judicial facilities and manpower; [5] the calendar of the courts; [6] the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, [7] the likelihood of settlement of the actions without further litigation should coordination be denied." (CCP § 404.1.)

Petitioner states that the *Swafford*, *Kameyer*, and *Rios* actions are currently stayed pending arbitration, and the parties in the *Hernandez* action have given notice of settlement. Thus initially, it appeared that only the *Jaimes* case was in an active state of litigation.

However, after the continuance of this Petition from July 31, 2026 to the current date, Defendants have now filed a Response in Opposition. Defendants highlight that the following action was omitted from the Petition:

Mendoza Jaimes v. Kumar Mgmt. Corp., et al., Case No. 25CV445405, filed in Santa Clara County Superior Court (“*Jaimes* Class action”), under which a motion to compel arbitration was granted and this case is also in a stayed status. Brenner Decl., ¶ 3.

Defendants also have updated the Court that in the *Jaimes* PAGA action, Mendoza Jaimes’ individual PAGA claim was also found subject to arbitration. Opposition, pg. 4, line 18.

Defendants argue that the “instant Petition for Coordination is an improper attempt by Petition to circumvent the stays that are in place in his putative class action and separately filed PAGA suit.” Opposition, pg. 3, lines 16-17. The omission of the *Jaimes* Class action from the Petition, is certainly problematic, and adds support to denying the Petition.

The Court acknowledges that the cases meet some of the factors that might support coordination under Section 404.1: they are brought against some overlapping defendants represented by the same counsel; they appear to have overlapping class periods and some causes of action; and some of the plaintiffs also overlap. However, these factors carry far less weight given that four of the cases are stayed and are proceeding to separate arbitrations, and a fifth has not only announced a settlement but a motion for approval of settlement is now pending. Brenner Decl., ¶ 5. In other words, the stayed cases are not causing a significant drain on court resources, and the settled case is already headed to court approval. There is but one lone case apparently in active litigation, the balance of the *Jaimes* PAGA action. Thus coordination does not present any benefit under these circumstances.

Petitioner argues that the settlement in the *Hernandez* action could release the other plaintiffs’ claims, and that coordination is necessary to protect the plaintiffs’, class members’ and aggrieved employees’ claims. However, if the named plaintiffs, putative class members and aggrieved employees meet the class definition, they will benefit from the settlement. Petitioner has failed to demonstrate that the factors of CCP § 404.1 weigh in favor of coordination.

As such, the petition for coordination is again DENIED. Petitioner’s counsel to serve the Order after hearing in all actions identified above and on the Chair of the Judicial Council.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.